



Bill Number: H.B. 2013

Carroll Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Specifies that a wildfire, for the requirement for the Arizona Department of Environmental Quality to submit an exceptional event demonstration, must be larger than 25,000 acres and be attributable to smoke or land damage.

CARROLL FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2013
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 49-424, Arizona Revised Statutes, is amended to
3 read:

4 49-424. Duties of department

5 The department shall:

6 1. Determine whether the meteorology of the state is such that
7 airsheds can be reasonably identified and air pollution, therefore, can be
8 controlled by establishing air pollution control districts within well
9 defined geographical areas.

10 2. Make continuing determinations of the quantity and nature of
11 emissions of air contaminants, topography, wind and temperature
12 conditions, possible chemical reactions in the atmosphere, the character
13 of development of the various areas of the state, the economic effect of
14 remedial measures on the various areas of the state, the availability, use
15 and economic feasibility of air-cleaning devices, the effect on human
16 health and danger to property from air contaminants, the effect on
17 industrial operations of remedial measures and other matters necessary to
18 arrive at a better understanding of air pollution and its control. In a
19 county with a population in excess of one million two hundred thousand
20 persons, the department shall locate a monitoring system in at least two
21 remote geographic sites.

22 3. Establish substantive policy statements for identifying air
23 quality exceptional events that take into consideration this state's
24 unique geological, geographical and climatological conditions and any
25 other unusual circumstances. These substantive policy statements shall be
26 developed with the planning agency certified pursuant to section 49-406,
27 subsection A and the county air pollution control department or district.
28 IF A WILDFIRE [THAT IS LARGER THAN TWENTY-FIVE THOUSAND ACRES] OCCURS ON
29 FEDERALLY MANAGED LAND [THAT] [AND THE ATTRIBUTABLE SMOKE OR LAND DAMAGE]

1 AFFECTS THIS STATE, THE DEPARTMENT SHALL SUBMIT AN EXCEPTIONAL EVENT
2 DEMONSTRATION TO THE UNITED STATES ENVIRONMENTAL PROTECTION AGENCY.

3 4. Determine the standards for the quality of the ambient air and
4 the limits of air contaminants necessary to protect the public health, and
5 to secure the comfortable enjoyment of life and property by the citizens
6 of the state or in any defined geographical area of the state where the
7 concentration of air pollution sources, the health of the population, or
8 the nature of the economy or nature of land and its uses so require, and
9 develop and transmit to the county boards of supervisors minimum state
10 standards for air pollution control.

11 5. Conduct investigations, inspections and tests to carry out the
12 duties of this section under the procedures established by this article.

13 6. Hold hearings relating to any aspect of or matter within the
14 duties of this section, and in connection therewith, compel the attendance
15 of witnesses and the production of records under the procedures
16 established by section 49-432.

17 7. Prepare and develop a comprehensive plan or plans for the
18 abatement and control of air pollution in this state.

19 8. Encourage voluntary cooperation by advising and consulting with
20 persons or affected groups or other states to achieve the purposes of this
21 chapter, including voluntary testing of actual or suspected sources of air
22 pollution.

23 9. Encourage political subdivisions of the state to handle air
24 pollution problems within their respective jurisdictions, and provide as
25 it deems necessary technical and consultative assistance therefor.

26 10. Compile and publish from time to time reports, data and
27 statistics with respect to those matters studied and investigated by the
28 department.

29 11. Develop and disseminate air quality dust forecasts for the
30 Maricopa county PM-10 nonattainment or maintenance area and any other
31 PM-10 nonattainment or maintenance areas that are designated in this state
32 from and after December 31, 2011. Each forecast shall identify a low,
33 moderate or high risk of dust generation for the next five consecutive
34 days and shall be issued by noon on each day the forecast is generated.
35 At a minimum, the forecasts shall be posted on the department's website
36 and distributed electronically. When developing these forecasts, the
37 department shall consider all of the following:

38 (a) Projected meteorological conditions for the PM-10 nonattainment
39 or maintenance area, including all of the following:

40 (i) Wind speed and direction.

41 (ii) Stagnation.

42 (iii) Recent precipitation.

43 (iv) Potential for precipitation.

44 (b) Existing concentrations of air pollution at the time of the
45 forecast.

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1 (c) Historic air pollution concentrations that have been observed
2 during meteorological conditions similar to those that are predicted to
3 occur in the forecast.

4 Enroll and engross to conform
5 Amend title to conform

FRANK CARROLL

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